

**DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION (FHWA)
WESTERN FEDERAL LANDS HIGHWAY DIVISION (WFLHD)**

**Justification for Restricted Competition Below SAT
Sole Source**

Procurement Request Number: HFLWSI260067PR
Critical Logistic Command and Control Center for Division Counsel

1. Contracting activity/agency

FHWA-WFLHD, 610 East Fifth Street, Vancouver, WA 98661-3801.

2. Description of supplies and/or services required to meet agency need

FHWA-WFLHD requires a secure location for Division Counsel, Claims Engineers, Expert Witnesses, and government staff to meet in order to adequately defend the government's case. The government requires a secure space to house the litigation documents and also requires a space with Wi-Fi / internet connection to ensure proper communication can be achieved. The total estimated amount of this action is \$20,000, to be expended over an estimated three-week period of performance.

3. Rationale

The AC Hotel is uniquely qualified to provide the required lodging and meeting space for the upcoming trial based on critical operational requirements and substantial cost-avoidance measures. While three hotels were initially considered within the geographic area, the AC Hotel is the only venue that satisfies the following unique constraints:

- **Cost Savings & Technical Integration:** Unlike the hotel previously selected for the postponed trial, the AC Hotel provides high-speed WiFi within the meeting space as a bundled service. In the government's effort to exercise fiscal responsibility this represents a significant cost savings. Other local venues require separate, daily connectivity fees that would result in an inefficient use of government funds.
- **Operational Security & Conflict of Interest:** A primary requirement for this acquisition is the physical separation of legal teams. It has been confirmed that Opposing Counsel has secured accommodations and meeting space at the other primary viable venue in the vicinity. To maintain attorney-client privilege, ensure the security of sensitive trial materials, and avoid accidental proximity that could compromise the integrity of the proceedings, the government requires a separate facility.

4. Authority

The authority to enter a contract for this effort with restricted competition is 41 U.S.C. 1901 under FAR 12.201-1, Simplified procedures.

CERTIFICATIONS AND APPROVAL

Technical/Requirements Certification. I certify that the facts and representations under my cognizance which are included in this justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief. Additionally, I certify that the above information and the technical evidence supporting this justification are complete and accurate.

SUSAN E ELLIS Digitally signed by SUSAN E ELLIS
Date: 2026.03.23 13:18:35 -07'00'

Susan Ellis, Construction Branch Chief Date

Contracting Officer Certification. I certify that this justification is accurate and complete to the best of my knowledge and belief and represents the best value and lowest overall cost alternative to meet the Government's needs. Since this effort does not exceed the Simplified Acquisition Threshold, this certification serves as approval.

REBEKAH RUTH WEBB Digitally signed by REBEKAH RUTH WEBB
Date: 2026.03.23 13:26:39 -07'00'

Rebekah Webb, Contracting Officer Date